IN THE SUPREME COURT OF OHIO

STATE OF OHIO, Plaintiff-Appellee, DANIELLE BARTON, Defendant-Appellant.	Supreme Court Case No. 2025-0912 On Appeal from the Hamilton County Court of Appeals, First Appellate District Court of Appeals Case No. C-2400427

BRIEF OF AMICI CURIAE AMERICAN CIVIL LIBERTIES UNION FOUNDATION AND AMERICAN CIVIL LIBERTIES UNION FOUNDATION OF OHIO IN SUPPORT OF DEFENDANT-APPELLANT DANIELLE BARTON

In support of Defendant-Appellant Danielle Barton

Melissa A. Powers (0055409)
Norbert Wessels (00100290)
HAMILTON COUNTY PROSECUTOR
230 East Ninth St., Ste. 4000
Cincinnati, OH 45202
Telephone: 513-946-3109
Facsimile: 513-946-3021
norbert.wessels@hcpros.org

Counsel for Plaintiff-Appellee State of Ohio

Parker Rider-Longmaid (29614-2025)*
Counsel of Record
Shay Dvoretzky (29622-2025)*
Sylvia O. Tsakos (29618-2025)*
Hanaa Khan (29621-2025)*
SKADDEN, ARPS, SLATE, MEAGHER & FLOM LLP
1440 New York Ave., NW
Washington, DC 20005
Telephone: 202-371-7000
Facsimile: 202-661-4061
parker.rider-longmaid@skadden.com

Raymond T. Faller (0013328)
Sarah E. Nelson (0097061)
HAMILTON COUNTY PUBLIC DEFENDER
230 East Ninth St., Second Floor
Cincinnati, OH 45202
Telephone: 513-946-3665
Facsimile: 513-946-3840
snelson@hamiltoncountypd.org

Counsel for Defendant-Appellant Danielle Barton

Amy Gilbert (100887)
Counsel of Record
Freda Levenson (0045916)
ACLU of Ohio Foundation
4506 Chester Ave.
Cleveland, OH 44103
Telephone: (614) 586-1972
agilbert@acluohio.org
flevenson@acluohio.org

Julian Clark*
AMERICAN CIVIL LIBERTIES UNION FOUNDATION
125 Broad Street, 18th Floor
New York, NY 10004
Telephone: (212) 549-2500
jclark@aclu.org

Counsel for Amici Curiae
*Motion for permission to appear pro hac vice forthcoming

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INTEREST OF THE AMICI CURIAE

The ACLU is a nationwide, nonprofit, nonpartisan organization with nearly two million members and supporters dedicated to the principles of liberty and equality embodied in our nation's Constitution and civil rights laws. The ACLU's Criminal Law Reform Project advocates for the constitutional and civil rights of those impacted by criminal legal systems. In furtherance of its mission, the ACLU has participated as a party or amicus in numerous cases raising Fourth Amendment issues, including Illinois v. Caballes, 543 U.S. 405 (2005) (canine sniff outside of a vehicle at a lawful traffic stop is not a search subject to the Fourth Amendment).

The ACLU of Ohio ("ACLU-OH") is an affiliate of the national ACLU and is supported by nearly forty thousand members and supporters across all of Ohio's eighty-eight counties. The mission of the ACLU-OH is to champion and expand constitutional and other fundamental rights and to pursue racial, economic, gender, and social equity for all Ohioans using all the tools of integrated advocacy without political partisanship; to fight in both principle and practice for the best ideals of fairness, freedom, and justice; and to advance our mission through an anti-racist, intersectional lens with determination, agility, practicality, and hope.

SUMMARY OF ARGUMENT

This case presents the question of whether a police canine's intrusion into a vehicle during the course of a vehicle sniff renders the sniff a search subject to the proscriptions of the Fourth Amendment. The First Appellate District ("First District") relied on flawed reasoning when it held that a canine's "instinctive" intrusion into a vehicle does not render the sniff a Fourth Amendment search. This holding should be reversed for at least the following two reasons.

First, canines are instrumentalities of law enforcement officers; therefore, a canine's actions are properly attributable to its handling officer. Just as an officer is constitutionally prohibited from entering a vehicle without a warrant and probable cause, see California v. Carney, 471 U.S. 386, 392 (1985), so too is the canine in his charge.

Second, whether a canine's intrusion into a vehicle is "instinctive" is irrelevant because "[s]ubjective intentions play no role in ordinary, probable-cause Fourth Amendment analysis." Whren v. United States, 517 U.S. 806, 813 (1996). If subjective intent is "irrelevant in determining whether [an] officer's actions violate the Fourth Amendment," Bond v. United States, 529 U.S. 334, 338, fn. 2 (2000), then "it is not clear why a canine's indiscernible motives would define the contours of an individual's right to be free from Government intrusion." United States v. Buescher, 691 F. Supp. 3d 924, 935 (N.D. Iowa 2023) (reasoning a canine sniff becomes an unconstitutional Fourth Amendment search when it involves a physical intrusion into the interior of a vehicle).

As such, the First District's holding is plainly inconsistent with this Court's precedent that establishes that a Fourth Amendment search occurs when there is a "physical intrusion of a constitutionally protected area in order to obtain information." State v. Jackson, 2022-Ohio-4365, ¶ 15 (quoting United States v. Jones, 565 U.S. 400, 407 (2012)); Florida v. Jardines, 569 U.S. 1, 5 (2013) (holding that a Fourth Amendment search has occurred when the Government physically intrudes on a "constitutionally protected area"(internal citation omitted)).Under the First District's "instinctive" intrusion exception, an entire category of intrusive canine sniffs will be immune from constitutional scrutiny, thereby infringing on the rights of people in vehicles while eroding the constitutional protections against unreasonable searches.

Indeed, under the First District's rule, the Fourth Amendment imposes no constraint whatsoever on clear government physical intrusions into private vehicles. This result cannot be squared with Fourth Amendment jurisprudence, which is designed to regulate all government intrusions on persons, property, and privacy, irrespective of the government actor involved and the magnitude of the intrusion.

Moreover, physical intrusions into private vehicles by narcotic-detection canines during the course of canine sniffs are especially problematic when, as here, the sniff is conducted after the conclusion of the mission of the traffic stop and without the requisite cause. See Rodriguez v. United States, 575 U.S. 348, 355 (2015). "A seizure for a traffic violation justifies a police investigation of that violation"; however, "the tolerable duration of police inquiries in the traffic stop context is determined by the seizure's 'mission' to address the traffic violation that warranted the stop[.]" Id. at 354. In this case, once the mission of the stop concluded, there was no cause for an ordinary canine sniff, let alone one inside the passenger compartment.

For these reasons, Amici urge the Court to reverse the First District's decision and to hold that a canine's intrusion into a vehicle during the course of a canine sniff constitutes a Fourth Amendment search that requires probable cause—irrespective of whether the behavior is "instinctual." Doing so would comport with fundamental principles of Fourth Amendment jurisprudence, promote officers' adherence to the strictures of the Fourth Amendment and its state analog, and protect Ohioans from unreasonable government interference.

STATEMENT OF FACTS

On the evening of April 16, 2023, at 11:15 pm, Deputy Staggs of the Hamilton County Sheriff's Office initiated a traffic stop of Danielle Barton ("Barton") and her passenger, Larry Riley ("Riley"), for the alleged improper display of her temporary license plate, see Motion to

Dismiss, App. T.d. 12, p. 2,[1] a non-arrestable minor misdemeanor. R.C. 4503.21. Deputy Staggs then asked Barton to step out of her vehicle with her license so he could show her the violation and write her a warning. Deputy Staggs then returned to his cruiser to verify Barton's driver's license and to run a search of Riley's name in his mobile data terminal. Id. ("23:21-23:24"). Deputy Staggs discovered that Riley had an outstanding warrant from Clermont County. Id. ("23:24"). As Deputy Staggs was running these searches, Deputy Friedhoff and his canine-detection canine, Falco, arrived on the scene as backup. Id. ("23:23"). The record does not indicate whether Deputy Staggs requested backup from Deputy Friedhoff. Deputy Staggs took Riley into custody, and placed him in the back of his cruiser. Id. ("23:26"). Deputy Staggs then asked Barton if he could search her vehicle—she did not consent. Id. Deputy Staggs then informed Barton that he would have Deputy Friedhoff's canine sniff the outside of her vehicle. Deputy Staggs told Barton to stand on a concrete ledge beside the sidewalk, and stated that if the canine alerted, they would have probable cause to search the vehicle. Id. ("23:28").

Before getting the canine out of his vehicle, Deputy Friedhoff took a leash and yellow ball out of the passenger side door and affixed the ball to his chest. Id. ("23:28"). He then retrieved the canine from his cruiser, told the canine to "sitz" (German for "sit"), and attached the leash to the canine. Id. The canine was then walked past Barton to the rear of Barton's vehicle, where Deputy Friedhoff again commanded the canine to sit. Id. at 3 ("23:29"). On the passenger side of the vehicle, Deputy Freidhoff commanded "sitz" (German for "sit") and then "bleib" (German for "stay"). Id. ("23:29"). He then walked the canine to the passenger side of the vehicle, guiding the canine back and forth with an open hand, palm upward. Id. Deputy

[1] All timestamps refer to the actual time stamp of the body worn camera video of the incident, as provided in Appellant's Motion to Suppress. App. T.d. 12. The timestamps provide the time in a

Friedhoff stopped the canine at the front of the vehicle and used a closed fist to non-verbally communicate with the canine and 24-hour format. Each of the facts contained in the Motion to Suppress were stipulated to by the parties. then says "such" (German for "find"). Id. He then walked the canine to the driver side of the vehicle. Id. The canine then walked past the driver side door to the rear driver-side tire, doubled back toward the driver side door, and jumped up on the open driver's window, placing its entire head inside the vehicle for about three seconds. Id. After this, the canine sat down, presumably to alert Deputy Friedhoff. Id. Deputy Friedhoff then rewarded the canine with a yellow ball, telling him "good boy" and returning him to the cruiser. Id.

Id. (

ARGUMENT

I. A Canine's Intrusion into a Vehicle is a Search Protected by the U.S. and Ohio

Constitutions, Irrespective of Whether the Intrusion is "Instinctive"

There are two discrete inquiries that, when examined, elucidate how the First District erred in holding that the canine's "instinctive" intrusion into Barton's vehicle was not a Fourth Amendment search: (1) whether a canine remains an instrumentality of its police handler when it acts "instinctively" during the course of a canine sniff, and (2) whether the canine's actions during the course of a sniff are analytically different from similar actions performed by a police officer under the Fourth Amendment or Article 1, Section 14 of the Ohio Constitution.[2] With

[2] Like Appellant Barton did in her motion to suppress, Amici Curiae make arguments under both the Fourth Amendment of the U.S. Constitution and Article 1, Section 14 of the Ohio Constitution because while this Court has found that it "should harmonize [its] interpretation" of the two, State v. Robinette, 80 Ohio St. 3d 234, 239 (1997), it also has "left open the possibility that, depending on the circumstances, this court may decide to give independent effect to Section 14, Article I in the appropriate case." State v. Murrell, 94 Ohio St.3d 489, 494 (2002).

respect to the first inquiry, the answer is unequivocally yes. And as an instrumentality of law enforcement, a canine's on-duty actions are viewed by the law to be no different than the actions of its handling officer.

A. A Narcotic-Detection Canine is an Instrumentality or Agent of Law Enforcement, and its Actions Are Therefore Attributable to Law Enforcement for Purposes of the

Fourth Amendment.

When canines are deployed for law enforcement purposes during the course of duty, they are instrumentalities of law enforcement. See R.C. 955.012 ("'Law enforcement canine' means a dog regularly utilized by a law enforcement agency for general law enforcement purposes, tracking, or detecting the presence of a controlled substance or explosive.") (emphasis added); Ex. A, Policy 308, Hamilton County Sheriff's Office Policy Manual, at 1 ("Canine - A dog that has been trained and may be used to assist one or more law enforcement officers in the performance of their official duties.") (emphasis added). Therefore, a canine's actions are properly attributed to their handler. See Skinner v. Ry. Labor Execs.' Assn., 489 U.S. 602, 614 (1989)) ("A drug dog is an instrumentality of the police, and the actions of 'an instrument or agent' of the government normally are governed by the Fourth Amendment"); Coolidge v. New Hampshire, 403 U.S. 443, 487 (1971) (concluding that instruments and agents of the State are State actors for Fourth Amendment purposes).

This Court has endorsed, in related contexts, the general principle that a handling officer may be held responsible for the actions of the canine in his charge. Harris v. Hilderbrand, 2023-Ohio-3005, ¶ 30–34 (discussing whether, for purposes of a negligence claim, an off-duty sheriff's deputy was entitled to immunity for municipal employees when his canine partner bit his houseguest). Indeed, several courts in Ohio have recognized that attacks by police canines

that occur during the course of duty can constitute an excessive use of force against the officer. For example, in White v. Harmon, the Sixth Circuit denied summary judgment on qualified immunity grounds where an officer brought an inadequately trained dog, who had previously bitten someone, to the arrest scene and allowed the dog to bite the handcuffed plaintiff. No. 94–1456, 1995 WL 518865, at *3 (6th Cir. Aug. 31, 1995) (unpublished table decision) (finding canine handler could be held liable for excessive force). In Rainey v. Patton, the Sixth Circuit concluded that it was unlawful for an officer to employ a police canine against an unarmed suspect who had been stopped due to a traffic offense. 534 F. App'x 391, 397 (6th Cir. 2013). Even though the plaintiff had not yet been handcuffed, she was on the ground and not attempting to flee when the canine was released. Id. Similarly, in Campbell v. City of Springboro the Sixth Circuit also found that a plaintiff made a colorable argument for excessive force. 700 F.3d 779, 787 (6th Cir. 2012). Before the canine apprehended the plaintiff, police officers had already found the plaintiff face down on the ground with his arms at his side against an outbuilding. Id.; see also Pigott v. Hornback, No. 1:14-CV-1148, 2015 WL 9590798, at *9 (N.D. Ohio Dec. 1, 2015), report and recommendation adopted, No. 1:14-CV-1148, 2015 WL 9491224 (N.D. Ohio Dec. 30, 2015).

The narcotic-detection canine in this case, like all such canines, intruded into the vehicle to search for drugs as a direct and foreseeable result of its training and its handler's actions. As the handler's law enforcement tool, the canine must be viewed by the law as an extension of the officer, and therefore, the canine's actions are properly attributed to him. See State v. Randall, 169 Idaho 358, 369 (2021) ("[L]aw enforcement is wholly responsible for the training and deployment of drug dogs; it is likewise wholly responsible when, as a result of their training and deployment, dogs enter vehicles during exterior sniffs."). Had Deputy Friedhoff stuck his own

head inside Appellant's vehicle and sniffed the interior cabin, there is no question that his action would constitute a Fourth Amendment search. Because the actions of the Deputy Friedhoff's canine are attributable to him, a search likewise occurs when the canine in his charge physically crosses into the interior cabin of a vehicle.

B. As Action Properly Attributed to the Handling Officer, a Canine's Intrusion into a Vehicle During the Course of a Canine sniff Constitutes a Fourth Amendment Search—Irrespective of Whether the Canine Acted "Instinctively."

As explained above, because a narcotic-detection canine's actions are properly deemed by the law to be the actions of its handler, a canine's actions during a canine sniff must be consistent with the limitations of the Fourth Amendment, even when its actions are "instinctive." See Randall, 169 Idaho at 369 ("[W]e will not regard drug dogs as highly trained tools of law enforcement when their behavior is consistent with the limitations of the Fourth Amendment, and then regard them as mere dogs when their behavior runs afoul of it."); State v. Organ, 2025 WL 3029069, at *12 (Tex. Crim. App. Oct. 30, 2025) ("[T]he dog was acting as a tool of law enforcement, and we decline to carve out some of the dog's behavior as instinctive while it is being used to obtain information.").

In concluding otherwise, the First District implicitly reasoned that instinctive canine behavior is not state action and thus falls outside the scope of the Fourth Amendment. As a threshold matter, whether a canine acts "instinctively" during the course of its duty is of no legal significance. Indeed, "[s]ubjective intentions play no role in ordinary, probable-cause Fourth Amendment analysis." Whren, 517 U.S. at 813; see Bond, 529 U.S. at 338 fn. 2 ("the subjective intent of the law enforcement officer is irrelevant in determining whether that officer's actions violate the Fourth Amendment"); State v. Jones, 2009-Ohio-316, ¶ 36 (same); State v. Trembly,

2000 WL 875948, *3 (4th Dist. June 30, 2000) (same). The U.S. Supreme Court has made clear that with two "limited exception[s]" for special-needs and administrative searches, the subjective intent of police officers is almost always irrelevant to whether an action violates the Fourth Amendment. Ashcroft v. al-Kidd, 563 U.S. 731, 736–37 (2011). Because a canine sniff does not fall within either exception, the intent of a canine, or lack thereof, has no constitutional import. And rightfully so. The First District's decision to retreat from objectivity invites further erosion of Ohioans' protections from unreasonable government intrusions. If a detection canine's physical intrusion into a private vehicle does not implicate the Fourth Amendment, then what other instrumentalities of law enforcement may an "instinctual" exception allow? Agentic AI policing tools? The First District's decision presents complicated questions without clear answers, creating uncertainty that will undoubtedly permeate law enforcement practices and necessitate complex, often divergent, judicial interpretations.

Moreover, the term "instinctive" is a misnomer in this context. See Randall, 169 Idaho at 368 ("[W]e note that . . . description of the dog's behavior as 'instinctive' is inapt because there is nothing innate about a dog seeking out narcotics."). Contrary to the First District's reasoning, canines do not instinctively search for drugs on their own; law enforcement officers train them to use their strong olfactory abilities to perform this specific task. Indeed, detection canine teams must successfully pass narcotics detection tests before they are certified and authorized to work in the field. See Ex. A at 10–11; Adm. Code 109:2-7-03.

Handlers train canines by rewarding them for discovering narcotics. In turn, this conditioning motivates the canines to search for and discover narcotics (i.e., participate in good behavior), as they recognize that they will be rewarded. See Adriana Pliego, Detection Canines: An Insight into Investigative Working Dogs, THEMIS:RESEARCH JOURNAL OF JUSTICE

STUDIES AND FORENSIC SCIENCE, May 18, 2025, at 14, https://scholarworks.sjsu.edu/cgi/viewcontent.cgi article=1148&context=themis (accessed November 23, 2025) [https://perma.cc/T7WE-28CU]. Whether or not the handler is actively prompting the canine to enter a vehicle, the canine is pursuing an odor that, if discovered, will yield a reward. Here, that reward was a yellow training ball.

So although a trained canine may be said to act "instinctively" while sniffing for narcotics, as the parties stipulated to here, that instinctual act must be understood to occur within the broader context of the incident at issue. The U.S. Supreme Court has recognized this principle on numerous occasions when it has counseled that all Fourth Amendment search and seizure cases involve a "totality-of-the-circumstances" inquiry. See, e.g., Barnes v. Felix, 605 U.S. 73, 79 (2025) (holding courts may not assess excessive force claims using the moment-of-threat rule because it constricts the proper inquiry into the "totality of the circumstances"); Florida. v. Harris, 568 U.S. 237, 247– 48 (2013) (rejecting a bright-line test in favor of a "totality-of-the-circumstances" approach for assessing probable cause).

As such, courts should assess the constitutionality of a canine's intrusion in the context of the totality of the circumstances, just as they do for any other Fourth Amendment analysis.[3] While, ostensibly, one could argue that the totality of the circumstances is not considered in this context because the canine's momentary "instinctual" intrusion is not a Fourth Amendment

[3] Some courts that have found a canine's "instinctive" intrusion into a vehicle during a sniff not to be a Fourth Amendment search do not attribute the canine's intrusion to its handler, see, e.g., United States v. Sharp, 689 F.3d 616, 620 (6th Cir. 2012) ("a trained canine's sniff inside of a car after instinctively jumping into the car is not a search that violates the Fourth Amendment as long as the police did not encourage or facilitate the dog's jump"), and construe the operative act narrowly. Id. In taking this narrow view, these courts implicitly reason the canine's "instinctive" action is limited to the moment the intrusion itself occurs and not attributable to the handler. As explained, this approach is inconsistent with the U.S. Supreme Court's Fourth Amendment jurisprudence.

search, contra Randall, 169 Idaho at 369, or that the canine's intrusion was outside the control of the officer, but cf. United States v. Karo, 468 U.S. 705, 714–15 (1984) (declining to create a Fourth Amendment exception based on lack of control of an instrument), or the canine's intrusion was not for information gathering purposes, but cf. Jones, 565 U.S. at 404–05 (holding the government's physical intrusion of private property "for the purpose of obtaining information" is a "'search' within the meaning of the Fourth Amendment"), those arguments are unpersuasive and this Court should not adopt their reasoning.

When a canine's "instinctive" intrusion is understood to be but one moment in a series of investigative actions attributable to the handling officer, the conceptual flaws of the "instinctual" intrusion exception become clear. Consider the actions of Deputy Friedhoff, the canine's handling officer, leading up to and surrounding the canine's "instinctive" intrusion into Barton's vehicle. Deputy Friedhoff:

- Decided to conduct a criminal investigation, Jointly Submitted Exhibit of Body Worn Camera Footage of the Traffic Stop, App. T.ex. 1, 23:27.
- Retrieved the canine's leash and reward ball from the front passenger seat of his squad car;

  Id. at 23:28.
- Removed the canine from rear passenger-side seat of his squad car and leashed it;

  Id. at 23:29.
- Walked the canine past Barton to the passenger side of the vehicle, guiding it back and forth with an open hand;

  Id.

- Walked the canine around the front of the car to the driver side, firmly grasping the leash to control the canine;

  Id.
- Walked the canine to the driver side door, again, holding the leash taut, restricting the movement of the canine;

  Id.
- Stood by the driver side door, loosely holding the leash while the canine recoiled and hopped before leaping up to the window;

  Id.
- Remained at the driver side door, loosely holding the canine's leash, giving enough slack to allow the canine to lunge into Barton's window;

  Id.

  Id.
- Rewarded the canine with its reward ball and verbal positive reinforcement after the canine intruded into Barton's vehicle and alerted.

  Id.

These frames demonstrate that when the intrusion is not viewed in isolation and instead, is viewed in light of the totality of the circumstances, it is clear the intrusion constitutes a Fourth Amendment search. Each of Deputy Friedhoff's actions was part of his investigation of unfounded suspicions of criminal activity and there is no break in the causal chain. In conducting his investigation, Deputy Friedhoff remained in control of the canine—his instrumentality—which he deployed for the sole purpose of detecting narcotics. To be sure, but for Deputy

Friedhoff's actions, his canine would not have been in a position to intrude into Barton's vehicle, irrespective of whether the intrusion was "instinctive."

As an extension of its handling officer, all actions of the canine during the course of a sniff—i.e., the canine's sole law enforcement function at the traffic stop—must be held to the same constitutional proscriptions as those that apply to the canine's handling officer. Accordingly, the First District 's holding cannot stand. II. Absent Independent Reasonable Suspicion of Criminal Activity, A Canine Sniff of a

Vehicle Conducted After a Traffic Stop's Mission is Complete, Violates the U.S. and Ohio Constitutions' Proscription Against Unreasonable Seizures

Although the U.S. Supreme Court has held on more than one occasion that a canine sniff investigation, in certain circumstances, does not constitute a Fourth Amendment search, seeUnited States v. Place, 462 U.S. 696, 707 (1983) (holding a canine sniff of the exterior of luggage at an airport does not constitute a Fourth Amendment search), Illinois v. Caballes, 543 U.S. 405, 409 (2005) (holding that a canine sniff of the exterior of a vehicle during a lawful traffic stop is not a Fourth Amendment search), it has never held a canine sniff of the interior of a vehicle is not search subject to the proscriptions of the Fourth Amendment. This Court must not either.

There are two U.S. Supreme Court cases that cabin police officers' authority to conduct a canine sniff of the exterior of a vehicle during and after a lawful traffic stop. First, in Illinois v. Caballes, the Court held that police do not violate the Fourth Amendment merely by conducting a canine sniff of a vehicle's exterior during a lawful traffic stop. Caballes at 409. The Caballes Court also noted that the overall duration of a traffic stop may be "justified by the traffic offense and the ordinary inquiries incident to such a stop." Id. at 408; see also Florida v. Royer, 460 U.S.

491, 500 (1983) ("an investigative detention must be temporary and last no longer than is necessary to effectuate the purpose of the stop.").

Next, in Rodriguez v. United States, the Court examined "whether the Fourth Amendment tolerates a dog sniff conducted after completion of a traffic stop." Rodriguez, 575 U.S. at 350 (emphasis added). Initially, the Court discussed Caballes, explaining that the "ordinary inquiries" of a traffic stop include "checking the driver's license, determining whether there are outstanding warrants against the driver, and inspecting the automobile's registration and proof of insurance." Id. at 355. These "negligibly burdensome precautions" are permissible because they "serve the same objective as enforcement of the traffic code: ensuring that vehicles on the road are operated safely and responsibly." Id. at 355–356. In contrast, the Court reasoned a canine sniff lacks "the same close connection to roadway safety." Id. at 356. For that reason, a canine sniff is "not fairly characterized as part of the officer's traffic mission," and constitutes an "[o]n-scene investigation into other crimes" that "detours from that mission." Id. Therefore, the canine sniff must not prolong a traffic stop beyond the time needed to complete its original mission. Id. at 356–357.

A. Deputies Prolonged Barton's Traffic Stop After the Mission of the Stop was

Complete in Violation of Rodriguez and its Progeny

Where, as here, a traffic stop "exceed[s] the time needed to handle the matter for which the stop was made" the stop "violates the Constitution's shield against unreasonable seizures." Id. at 350; see State v. Green, 2016-Ohio-4810, ¶ 2 (7th Dist.) (holding that when officers extend a traffic stop "past the time needed to complete the mission of the stop without reasonable suspicion to do so" the stop becomes an unconstitutional seizure). In this case, Deputy Staggs stopped Barton on the basis of improper placement of a license plate and intended to issue her a

warning ticket for the violation—i.e., the mission of the traffic stop. See State's Brief in Opposition to Defendant's Motion to Suppress, App. T.d. 13, p. 2. However, the canine sniff of the exterior and interior of Barton's vehicle was conducted after the time reasonably required to complete the stop's mission and there was no independent reasonable suspicion of criminal activity to justify it.[4]

The record shows that the traffic stop's "mission" should have taken no more than a few minutes. Upon stopping Barton at 11:15pm, Deputy Staggs immediately ran two queries on Barton's license plate number: a "Be On the Lookout" or "BOLO" search, and a "Regional Computer Information Center" or "RCIC" vehicle search. See Ex. B, "Call Record Report" at 2. Combined, these searches should have yielded information about Barton's vehicle, such as its ownership and registration and status, as well as about Barton, including her criminal history and whether she has a suspended license, or outstanding warrants. SeeUnited States v. Pate, 2009 WL 3418664, at *1, n. 3 (S.D.Ohio Oct. 19, 2009) ("Officers use their [Mobile Data Computers] MDCs to obtain information about persons and vehicles from the Regional Crime Information Center ("RCIC"). RCIC maintains a police information system within Hamilton County. . . If an officer enters a license plate number into the MDC, the officer receives information about the registered owner of the car."). "This process usually takes less than 15 seconds but can take several minutes." Id. (summarizing the testimony of an information technologist and records custodian for RCIC about how the RCIC system works).

Having already run queries on the license plate of Barton's vehicle when he approached Barton's vehicle at 11:16pm, see Ex. B, at 2, Deputy Staggs should have had nearly all the

[4] The parties did not stipulate to there being no "improper delay" caused by the canine sniff, as counsel for the State suggested in the hearing on the motion to dismiss. T.r. 56.

information he needed to confirm the vehicle was being operated lawfully. That leaves only three remaining tasks related to the mission of the traffic stop: 1) ascertaining the identity of the driver, 2) verifying the driver was operating the vehicle with a valid license; and 3) writing a warning for the alleged traffic violation. Barton produced her license immediately upon being asked, confirming she was the lawful owner of the vehicle. see Motion to Dismiss, App. T.d. 12, p. 2. It was at this point, at approximately 11:19pm, id., Deputy Staggs reasonably could have issued the written warning he intended to, thereby completing the mission of the stop. State v. Chatton, 11 Ohio St.3d 59, 60–61 (1984) (holding that once the officer saw a temporary tag, the entire mission of the traffic stop—confirming that the car was registered—was completed).

However, instead, Deputy Staggs then approached the passenger side of the vehicle and asked Mr. Riley for his social security number and name. See Motion to Dismiss, App. T.d. 12, p. 2. It was only after receiving Mr. Riley's name at 11:20pm, did Deputy Staggs return to his cruiser and run Barton's license and the name of her passenger. Id. At 11:23pm, Deputy Friedhoff and his narcotic-detection canine arrived as back up on the scene, while Deputy Staggs continued running the searches. Id. The searches took three minutes, lasting from 11:21–11:24pm. Id. At 11:24pm, Deputy Staggs received information in response to his search revealing Mr. Riley had an open warrant in Clermont County. Id. At 11:26pm, Deputy Staggs took Mr. Riley into custody, and placed him in the back of his squad car. Id. It is at this point, 11:26pm, eleven minutes after the stop was initiated, that all inquiries and tasks related to the traffic stop should have been reasonably concluded and Barton should have been able to leave. But the stop did not end there.

To extend the traffic stop of Barton further—beyond the reasonable conclusion of the stop's mission—the responding deputies needed "reasonable suspicion ordinarily demanded to

justify detaining an individual." Rodriguez,575 U.S. at 355; see also State v.Batchili, 2007-Ohio-2204, ¶ 15 (pre-Rodriguez case noting the same). There is no dispute they did not have reasonable suspicion. Nevertheless, at 11:27pm, Deputy Staggs asked Barton if he could search her car. After she did not consent, Deputy Staggs informed her that Deputy Friedhoff would conduct a canine sniff on the outside of her vehicle. Id. At 11:29pm, fourteen minutes after the stop began, Deputy Friedhoff began the canine sniff. Id. The sniff ended at 11:30pm. Id. Thus, at most, the criminal investigation unrelated to the traffic stop prolonged the stop by eleven minutes (11:19–11:30pm); at a minimum, it extended the stop by four minutes.

The deputies did not have independent reasonable suspicion of criminal activity to justify prolonging the stop of Barton. "Reasonable suspicion exists when an officer has specific and articulable facts that provide an objective basis for suspecting legal wrongdoing." United States v. Jordan, 100 F.4th 714, 718 (6th Cir. 2024) (cleaned up). When determining whether reasonable suspicion exists, courts apply a totality-of-the-circumstances inquiry. See United States v. Stepp, 680 F.3d 651, 664 (6th Cir. 2012) ("In deciding whether an officer conducting a traffic stop has developed a reasonable suspicion of criminal activity, we consider the totality of the circumstances.") (internal citation omitted).

Likewise, this Court has identified four general categories of "certain specific and articulable facts" that would give rise to reasonable suspicion: "(1) location; (2) the officer's experience, training or knowledge; (3) the suspect's conduct or appearance; and (4) the surrounding circumstances." State v. Brown, 2010-Ohio-1110, ¶ 30 (5th Dist.) (citing State v. Bobo, 37 Ohio St.3d 177, 178–79 (1988)). Location relates to whether the stop occurred in a "high crime" area, an area of known drug activity, or an area under police surveillance, those facts may give rise to reasonable suspicion. Id. at ¶ 31 (collecting cases). The "suspect's conduct

or appearance includes suspicious, inexplicable, or furtive movements, such as watching-out, ducking, hiding, fleeing, or discarding an object." Id. at ¶ 33 (collecting cases). By itself, nervousness "is a weak basis for suspicion." Jordan, 100 F.4th at 721. This is especially true for drivers, who "don't enjoy being pulled over," considering the prospects of a ticket, increased insurance, or a suspended license. Id. The surrounding circumstances factor relates to the time of day or night and the officers' safety if they are "out of a vehicle, away from protection, or without backup." Brown at ¶ 35 (collecting cases).

No specific and articulable facts provide an objective basis for suspecting wrongdoing here. Nothing in the record indicates that the location; officers' experience, training or knowledge; the conduct or appearance of Barton or Mr. Riley; or surrounding circumstances gave rise to reasonable suspicion. Outstanding warrants for Mr. Riley, Barton's passenger, cannot give rise to reasonable suspicion of current wrongdoing. "[K]knowledge of a person's prior criminal involvement (to say nothing of a mere arrest) is alone insufficient to give rise to the requisite 'reasonable suspicion' to justify a shift in investigatory intrusion from the traffic stop to a firearms or drugs investigation." Green, 2016-Ohio-4810, at ¶ 22 (internal citations omitted) (rejecting argument that the officer's recognition of the suspects from an earlier drug incident formed the requisite reasonable suspicion for extending the traffic stop). The Brown court similarly rejected an argument that the officer's prior familiarity with the suspect as someone known to have a substance use disorder gave rise to reasonable suspicion. See Brown, 2010-Ohio at ¶ 26–27. "If the law were otherwise, any person with any sort of criminal record—or even worse, a person with arrests but no convictions—could be subjected to a Terry-type investigative stop by a law enforcement officer at any time without the need for any other

justification at all." Id. at ¶ 28 (citing United States v. Sandoval, 29 F.3d 537, 543 (10th Cir. 1994)).

CONCLUSION

For the foregoing reasons, the canine's sniff of the interior of Barton's vehicle was a Fourth Amendment search that required, but was not supported by probable cause. The canine sniff was also unconstitutional because it was conducted after the time reasonably required to complete the stop's mission and there was no independent reasonable suspicion of criminal activity to justify it. Accordingly, this Court should reverse the First District's decision and remand with instructions to remand to the trial court to suppress the evidence recovered from Barton's vehicle. Dated: November 24, 2025 Respectfully submitted, /s/ Amy Gilbert Amy Gilbert (0100887) Freda Levenson (0045916) Counsel of Record ACLU OF OHIO FOUNDATION 4506 Chester Avenue Cleveland, OH 44102 Telephone: (614) 586-1959 agilbert@acluohio.org flevenson@acluohio.org Julian Clark* AMERICAN CIVIL LIBERTIES UNION FOUNDATION 125 Broad Street, 18th Floor New York, NY 10004 Telephone: (212) 549-2500 jclark@aclu.org Counsel for Amici Curiae *Motion for permission to appear pro hac vice forthcoming

Respectfully submitted,

/s/ Amy Gilbert
Amy Gilbert (0100887)
Counsel of Record
Freda Levenson (0045916)
ACLU of Ohio Foundation
4506 Chester Ave.
Cleveland, OH 44103
Telephone: (614) 586-1972
agilbert@acluohio.org

Counsel for Amici Curiae

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing was sent by electronic mail on November 24, 2025 to the following counsel of record:

Melissa A. Powers (0055409)
Norbert Wessels (00100290)
HAMILTON COUNTY PROSECUTOR
norbert.wessels@hcpros.org

Counsel for Plaintiff-Appellee State of Ohio

Parker Rider-Longmaid (29614-2025)
Counsel of Record
Shay Dvoretzky (29622-2025)
Sylvia O. Tsakos (29618-2025)
Hanaa Khan (29621-2025)
SKADDEN, ARPS, SLATE, MEAGHER & FLOM LLP
parker.rider-longmaid@skadden.com

Raymond T. Faller (0013328)
Sarah E. Nelson (0097061)
HAMILTON COUNTY PUBLIC DEFENDER
snelson@hamiltoncountypd.org

Counsel for Defendant-Appellant Danielle Barton

/s/ Amy Gilbert
Amy Gilbert (0100887)
Counsel of Record
Freda Levenson (0045916)
ACLU of Ohio Foundation
4506 Chester Ave.
Cleveland, OH 44103
Telephone: (614) 586-1972
agilbert@acluohio.org

Counsel for Amici Curiae